Digital Privacy Agreement Audit: A Data Ethics Project

Background and Context

The Evolution of Digital Privacy

The rise of digital services has fundamentally changed how personal information is collected, used, and shared. What began with simple website cookies has evolved into complex ecosystems of data collection and cross-platform tracking. Today, the average person interacts with dozens of digital services, often unknowingly agreeing to extensive data collection and sharing practices.

Consider these statistics: - The average American has agreed to over 250 privacy policies - Less than 1% of users read privacy agreements before accepting - A typical privacy policy takes 18 minutes to read - Some agreements require college-level reading comprehension

The Regulatory Response

As digital services evolved, privacy regulations emerged in response to growing concerns:

European Union (GDPR - 2018)

1. Established comprehensive privacy rights
2. Created strict consent requirements
3. Implemented significant penalties
4. Set global privacy standards

United States (State-by-State)

5. California Consumer Privacy Act (CCPA)
6. Virginia Consumer Data Protection Act (VCDPA)
7. Colorado Privacy Act
8. Emerging state-level regulations

This patchwork of regulations creates complex compliance requirements and varying levels of user protection based on location.

The Privacy Paradox

Despite growing privacy concerns, people continue to use digital services that collect their data, creating what researchers call the “privacy paradox”: - Users express strong privacy preferences - But accept privacy-invasive terms without reading - And rarely exercise available privacy rights - While continuing to share personal information

Project Overview

This project examines the reality of digital privacy through direct analysis of the agreements we actually make. Rather than studying privacy in theory, we will:

- Examine real agreements we've accepted
- Compare practices across services
- Assess regulatory compliance
- Evaluate user understanding and rights

Through this analysis, we'll explore questions like: - How do privacy practices vary across service types? - Which agreements meet regulatory requirements? - What rights do users actually have? - How could agreements be improved?

Project Steps

Step 1: Set Up Project Infrastructure

Create GitHub Repository (named `DATA6550-Privacy-Audit`)

9. Standard structure:

1.
```
privacy_audit_report.docx
readme.md
Agreements/
  Company1.pdf
  Company2.pdf
  Company3.pdf
Analysis/
  Lastname1/
  Lastname2/
  Lastname3/
  Lastname4/
Comparison/
  regulatory_matrix.xlsx
  findings.docx  (notes about the data)
Collaboration/
  WeekA.docx
  WeekB.docx
```

2. Create a shared Google document for the final report of this project. Google Docs will automatically record all document updates, and it is one of the ways the instructor will track your contributions. Share the document with the team, the instructor, and add a link to it in the Dropbox for the project in D2L, along with uploading a PDF of the document. My Gmail account is jfwallin@gmail.com when you add me to the document (with editing rights, please). Please submit only one PDF and link per group.

Step 2: Create a Group Communication Plan

1. Choose a communication method (e.g., D2L forums, Teams, Zoom, or something of your choice).
2. Invite group members and your professor to the forum you use.
3. Ensure all group members check in regularly and contribute to discussions.
4. Use the selected method to coordinate tasks, share updates, and resolve challenges.
5. Document communications with AI summaries and supplemental documents. This will be submitted.

Step 3: Individual Service Inventory

Each student creates a list of digital services they use:

- Minimum 8-10 services per student
- Must span at least 3 different categories:
  - Financial (banking, credit cards, payment apps)
  - Social media platforms
  - Email/Communication services
  - Entertainment (streaming, gaming)
  - Educational/Professional tools –

You must have actually agreed to the privacy policy and document when/how you agreed.

Step 4: Group Service Selection

Pool all identified services
Select 3-4 services *per person* for analysis from the list above.
Ensure diversity across:

1. Service types
2. Company sizes
3. Geographic regions

Document selection rationale
Create analysis assignment matrix.

Step 5: Individual Analysis

Each student analyzes their assigned services:

1. Locate and document current privacy agreements

2. Create structured analysis covering:

    - Data collection practices

    - Data sharing policies

    - User rights

    - Opt-out provisions

    - Update procedures

3. Document findings in individual Analysis/ folders

4. Create a summary matrix for each agreement

Step 6: Regulatory Comparison

Compare agreements against key regulations:

US Privacy Laws - California Consumer Privacy Act (CCPA) * Notice requirements * Consumer rights * Opt-out provisions - Virginia Consumer Data Protection Act (VCDPA) * Processing limitations * Consumer rights * Business obligations - Other relevant state laws

GDPR Requirements - Data subject rights - Consent requirements - Data transfer provisions - Processing limitations - Documentation requirements

Step 7: Comparative Analysis

Create comparison matrix showing: - Common elements across agreements - Unique features - Regulatory compliance status - Best/worst practices - User-friendliness assessment

Focus areas:

1. Data Collection - Types of data collected - Collection methods - Purpose specification

2. User Rights
    1. Access rights
    2. Deletion rights
    3. Portability options
    4. Opt-out mechanisms
3. Data Sharing
    5. Third-party sharing
    6. International transfers
    7. Service provider requirements
4. Security Measures
    8. Storage practices

9. Protection methods
10. Breach notification

Step 8: Final Deliverables

1. **GitHub Repository:**
    1. All privacy agreements (in Agreements/)
    2. Individual analyses
    3. Comparative matrices
    4. Meeting summaries
    5. Final report
2. **Final Report (5 pages):**
    1. Overview of services analyzed
    2. Key findings from comparison
    3. Regulatory compliance assessment
    4. Recommendations for improvement
    5. Lessons learned
    6. PDF and link to Google doc in Dropbox
3. **Collaboration reports**
    1. WeekA.pdf
    2. WeekB.pdf
    3. Supplemental document if needed
4. **Individual Submissions:**
    1. Personal reflection
    2. Contribution documentation
    3. System-specific findings

Evaluation Criteria

Individual Contribution (40%)

Quality of individual analysis
Participation in discussions
Repository contributions
Personal reflection

Group Deliverables (60%)

Comprehensiveness of analysis
Quality of comparative work
Regulatory understanding
Report clarity and insight

Notes and Guidelines

Using AI Tools

AI can help analyze agreements, but conclusions must be original
Document any AI tools used and their purpose
Verify AI-generated analysis independently
Focus on synthesis and comparison rather than pure extraction

Analysis Focus

Prioritize key privacy aspects over exhaustive analysis
Document assumptions and limitations
Consider practical implications for users
Maintain professional tone when critiquing practices

Group Collaboration

Regular communication is essential
Document all meetings with AI-assisted summaries
Use GitHub for version control
Ensure balanced participation

Technical Tips

Use consistent formatting for analyses
Create clear documentation
Maintain organized repository structure
Regular commits and updates

Additional Resources

Regulatory References

GDPR full text and guidelines
CCPA regulations and updates
VCDPA implementation guidance
FTC privacy guidance

Privacy Analysis Tools

Privacy policy comparison frameworks
Readability assessment tools
Documentation templates
Analysis matrices

Getting Help

Course forums for technical questions

Office hours for guidance
Group discussion for clarification
Documentation for project structure